

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR JANUARY 13, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

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| 1.
9:00 AM | MSP21-01598 ESTATE OF BERTHELLA JEFFERSON
HEARING IN RE: PETITION FOR FIRST & FINAL DISTRIBUTION FOR THE ESTATE OF BERTHELLA JEFFERSON & WAIVER OF ACCOUNT/WAIVER OF NOTICE OF HEARING FILED ON 8-19-25 BY ERIC JEFFERSON & ALANNA MCKINNEY SUBSEQUENT PETITION FILED

Petitioners still must do the following:

<ol style="list-style-type: none">1. Appear at the hearing2. File evidence of payment of filing fees. Orders on Court Fee Waiver filed 10-14-2021.3. Verify Petition under penalty of perjury. PrC § 1021. CCP § 2015.5. CRC 7.1034. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice, including Franchise Tax Board who requested special notice, and file a Proof of Service with court.5. File a verified declaration with Creditor Claims fully listed in Petition including date filed. PrC § 10900; CRC § 7.4036. File Satisfaction of creditor's claims; otherwise, petitioner will have to give written notice of rejection (Judicial Council form DE-174) and then creditor would have 3 months from date of notice to act. PrC § 93537. File a verified declaration in compliance with CRC 7.250 regarding any acts taken under IAEA w/notice of proposed action. (Specifics needed or statement that no action was taken)8. File Waiver of Accounting by Eric Jefferson or Accounting that complies with PrC § 1060 <i>et seq.</i>9. File verified declaration of petitioner showing compliance with Probate Code § 11005, unless account is waived10. File verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705.11. File a verified declaration to include list of expenses for which petitioner is requesting reimbursement as indicated in proposed Order at page 3, ¶ 3.12. Submit a revised, proposed Order as needed in resolution of above and that includes amount of statutory compensation and expenses for which petitioner is requesting reimbursement |
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2A. 9:00 AM	P23-00290 ESTATE OF: NAILAH BUFORD HEARING IN RE: PETITION FOR: INSTRUCTIONS RE THE SALE OF ESTATE REAL PROPERTY FILED ON 3-28-25 BY FRANKYE CAMPBELL Need appearances to report status, including 8-19-2025 order to meet and confer Note: Per 8-19-2025 minute order, Fatima Buford appeared in objection and court ordered objections to be filed by 10-3-2025. None has been filed.
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2B.

9:00 AM

P23-00290

ESTATE OF: NAILAH BUFORD

HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED WITH IAEA FILED BY FATIMAH BUFORD ON 1/13/25

Petitioner, daughter, still must do the following:

1. Appear at the hearing to report status, including 8-19-2025 order to meet and confer
2. File a verified declaration by petitioner to address petition Item # 5.a.(7) or 5.a.(8) (whether decedent is survived by issue of a predeceased child)
3. File a verified declaration to include Phillip Killingsworth, Aaliyah Linares, Carmello Linares, Maliya Ash, Ja'Siri Muhammad, Zuree Hedrington, trustee of trust, trust beneficiaries, Frankye Campbell, Malukah Manasseh and Cynthia Kemp in Item # 8. PrC § 8002
4. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled Milya Ash and Askari Ash and anyone added by verified declaration not already served, and file a Proof of Service with court. PrC § 8100; LR 7.151(e)
5. File evidence of what Notice of Petition to Administer Estate. Proof of Service of Notice is attached to petition; however, Notice has not been filed.
6. File a verified declaration to include date of death of Asha Buford. LR 7.151(d)

Notes:

- a. Letters of Administration With Will Annexed issued to Frankye D. Campbell 9-23-2024.
- b. Petition requests admission of will; however, will dated 12-20-2019 was admitted, pursuant to Order for Probate filed 6-18-2024.
- c. If granted, bond will be fixed at \$552,000.00.
- d. Administrator Frankye Campbell's Objection filed 3-28-2025.

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2C.

9:00 AM

P23-00290

ESTATE OF: NAILAH BUFORD

HEARING IN RE: PETITION FOR REMOVAL OF ADMINSTRATOR FILED BY FATIMAH BUFORD ON
1/13/25

Petitioner, daughter, still must do the following:

1. Appear at the hearing to report status, including 8-19-2025 order to meet and confer
2. Verify petition under penalty of perjury. PrC § 1021. CCP § 2015.5. CRC 7.103
3. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court.
4. Submit proposed Order

Note: Administrator Frankye Campbell's Response and Objection filed 3-28-2025.

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5.	P23-01404	MATTER OF: THE CATHERINE M. FOWLER REVOCABLE TRUST, DATED JUNE 21, 2001
9:00 AM	HEARING IN RE: PETITION FOR ORDER REMOVING CO-TRUSTEES, ORDER SURCHARGING CO-TRUSTEES, RELIEF FROM FINANCIAL ELDER ABUSE, RECOVERY OF PROPERTY AND FUNDS, AND ORDER COMPELLING TRUST ACCOUNTING FILED ON 08/07/2023 BY HELENE M. DAVIDSON	
	Need appearances to report status	
	Notes: a. Response and Objection filed by Robert Schmitz, Richard R. Schmitz and Thomas Schmitz 12-22-2023. b. Per 5-16-2024 minute order, court ordered an accounting for the period 11-1-2020 through 5-16-2024, and briefs filed as to entitlement to an accounting prior to date of death; replies are due 7-16-2024. c. Briefing By Petitioner filed 6-25-2024. d. Order Re: Request for Pre-Death Accounting filed 9-4-2024. e. Decl. of Kevin M. Rodriguez in Response to Court Order filed 7-25-2024. f. A Stipulation and Order to Extend Court-Ordered Deadline to Provide Pre-Death Trust Accounting was sent to legal processing 6-5-2025. Stipulation must be picked up and filed with court.	

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6. **P23-01491** **MATTER OF: THE LEROY JAMES FRANKLIN, SR. LIVING TRUST**
9:00 AM HEARING IN RE: MOTION TO HOLD SHAWN KING IN CONTEMPT AND SUSPEND HER POWERS FOR
FAILURE TO COMPLY WITH COURT ORDER FILED ON 10/29/25 BY LEROY FRANKLIN JR

Need appearances

Note: Amended Petition filed 12-17-2025 is set for hearing 5-7-2026.

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7.

9:00 AM

P24-00150 ESTATE OF MARC LENK

HEARING IN RE: FIRST AND FINAL REPORT OF EXECUTOR FILED BY RAE LENK-ECKHOLM ON
08/19/2025

Need:

1. Appearances
2. Evidence of appointment of minor beneficiaries' parents as guardian of each minor's estate or Accounting that complies with PrC § 1060 *et seq.*
3. Revised, proposed Order if needed in resolution of above

Note: Minor beneficiaries cannot waive account. Parents, as such, are the natural guardians of the person of their children, not of their estates; they have no authority to waive accounting on behalf of their children.

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8A.	P24-01425	MATTER OF: THE DUCKETT TRUST DATED JULY 3, 1992, AS AMENDED AND RESTATED
9:00 AM	HEARING IN RE: PETITION TO APPROVE FIRST AND FINAL ACCOUNT OF TRUST ADMINISTRATION FILED BY MARK DUCKETT ON 3/28/25	
Need appearances to report status, including mediation ordered 8-19-2025		
Note: Objection of Steven F. Duckett filed 8-14-2025.		

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8B.	P24-01425	MATTER OF: THE DUCKETT TRUST DATED JULY 3, 1992, AS AMENDED AND RESTATED
9:00 AM	HEARING IN RE: PETITION FOR BREACH OF TRUST AND REQUEST FOR SURCHARGE FILED BY STEVEN F DUCKETT ON 8/14/24	
	Need appearances to report status, including mediation ordered 8-19-2025	
	Note: Response and Objections filed by Mark Duckett 12/17/24.	

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10.

9:00 AM

P25-00706

ESTATE OF ELIZA HENDERSON

HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY WITH IAEA
FILED ON 04/23/25 BY MICHAEL HENDERSON

Petitioner, son, still must do the following:

1. Appear at the hearing
2. File a verified declaration to state the full address for Patricia Gooden
3. File a verified declaration by petitioner to address petition item # 5.a.(5) or 5.a.(6) (whether decedent is survived by a child)
4. File a verified declaration to clarify if decedent was divorced/never married, as stated at Petition item 5.a(2)(a), or if the spouse is pre-deceased, as the Will implies in paragraph 2, where decedent says "I am a widow....".
5. File a verified declaration to answer Petition item 2.d, regarding Bond
6. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 8100; LR 7.151(e)
7. Have Notice of Petition to Administer Estate DE-121 published and file proof of publication with the Court. PrC § 8120
8. File Proof of Subscribing Witness Form DE-131. PrC § 8220.
9. Submit a revised Proposed Order, form DE-140, that is completed at items 3, 4, and 5

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11. 9:00 AM	P25-01395 ESTATE OF: RONALD NEWCOMER HEARING IN RE: PETITION FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED - SET PER ORDER FILED 12/16/25 Need appearances Note: Original will lodged 11-13-2025 is unavailable for review at this time.
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12. **P25-01534** **ESTATE OF: CARL OSTERHOLM**
9:00 AM HEARING IN RE: PETITION FOR PROBATE OF WILL & FOR LETTERS TESTAMENTARY FILED ON 8-28-25
BY AMY OSTERHOLM

Need:

1. Verified declaration by petitioner to include "older brother" mentioned in will in Item # 8. PrC § 8002
2. Proof of mailing to anyone added by verified declaration, not already served
3. Verified declaration by petitioner to clarify decedent's date of death. Petition states 7-25-2025; however, proposed Order reflects 7-24-2025.